

ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM A-2, COUNTY AGRICULTURE, TO AG, AGRICULTURE, FOR LOT 1, BLOCK 1; LOT 1, BLOCK 2; AND LOT 2, BLOCK 2, PLAINS INDUSTRIAL PARK, AND CHANGING THE ZONING CLASSIFICATION FROM A-2, COUNTY AGRICULTURE, TO HI, HEAVY INDUSTRIAL, FOR LOT 3, BLOCK 2, PLAINS INDUSTRIAL PARK, CHEYENNE, WYOMING (LOCATED SOUTH OF I-80, WEST OF CAMPSTOOL ROAD).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on March 4, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1; Lot 1, Block 2; and Lot 2, Block 2, Plains Industrial Park, Cheyenne, Wyoming, is hereby changed to AG, Agriculture, and the zoning classification of the real property described as Lot 3, Block 2, Plains Industrial Park, Cheyenne, Wyoming, is hereby changed to HI, Heavy Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated **Plains Industrial Park** final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____